

Amendment No. 1 to HB0787

Farmer
Signature of Sponsor

AMEND Senate Bill No. 932

House Bill No. 787*

by deleting all language after the enacting clause and substituting:

SECTION 1.

(a) There is created the distance to drive program study committee to help determine the feasibility of implementing a distance to drive program that would facilitate reinstatement of suspended and revoked driver licenses for criminal defendants based on meeting the objectives set by the court and completing all the requirements set by the department of safety. The study committee is composed of the following five (5) members:

(1) A member of the house of representatives, to be appointed by the speaker of the house of representatives;

(2) A member of the senate, to be appointed by the speaker of the senate;

(3) A general sessions judge, to be appointed by the speaker of the house of representatives;

(4) A law enforcement officer, to be appointed by the speaker of the senate; and

(5) A public member with experience or knowledge in criminal justice, to be appointed by the governor.

(b)

(1) The longest-serving legislative member of the study committee shall call the first meeting of the study committee.

(2) The study committee may conduct regular or special meetings by electronic or other means pursuant to § 8-44-108.

(c) The study committee shall agree upon any findings and recommendations by a majority vote of the total membership of the study committee. A majority of the members of the study committee constitutes a quorum for the purpose of meeting and conducting business.

(d) All vacancies occurring on the study committee by reason of death or resignation are filled by the original appointing authority.

(e) The members of the study committee receive no compensation for their services on the study committee, but receive reimbursement for expenses incurred in attending meetings of the study committee and for travel incident thereto, in accordance with the comprehensive travel regulations promulgated by the department of finance and administration and approved by the attorney general and reporter.

(f) The study committee shall:

(1) Review data and information on the reasons for suspension or revocation of driver licenses for criminal justice-involved persons;

(2) Determine whether creation of a distance to drive program would result in benefits to the state of Tennessee, including by decreasing the burden on courts, district attorneys general, law enforcement agencies, court clerks, and probation officers;

(3) Study best practices implemented in drug court treatment programs, mental health treatment court programs, and veterans treatment court programs that could be implemented in a distance to drive program;

(4) Solicit ideas and opinions from criminal justice experts; and

(5) Compile a report of the committee's findings and recommendations, which may include potential legislation creating a distance to drive program if appropriate.

(g) All appropriate agencies of state government shall provide assistance to the study committee upon request.

(h) The report required by subdivision (f)(5) must be submitted to the general assembly, no later than July 1, 2026, at which time the study committee ceases to exist.

SECTION 2. For the purpose of appointing public members to the study committee, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.